



A COMMUNITY OF CHOICE

Planning and Development Department
2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-23-98 | Gymnastics Facility Zoning Map Amendment
Date: September 11, 2023

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 9/11/2023
- Public Services Committee 9/19/2023
- Second reading 9/25/2023
- Public Services Committee 10/3/2023
- Third and final reading 10/9/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their September 5, 2023 meeting and unanimously recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM MUB MIXED-USE BUSINESS EMPHASIS TO P PUBLIC DISTRICT FOR LAND LOCATED AT LOT 1, BLOCK 1, BACK 40 SUBDIVISION, THIRD FILING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of the property described herein has applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on September 5, 2023, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1, Block 1, Back 40 Subdivision, Third Filing, Cheyenne, Wyoming, is hereby changed to P Public District.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. This ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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CITY OF CHEYENNE PLANNING COMMISSION SEPTEMBER 5, 2023 STAFF REPORT

FILE: UDC-23-98: Gymnastics Facility – Zoning Map Amendment

REQUEST: A request to zone approximately 4.84 acres of land from MUB Mixed-use Business Emphasis to P Public

LOCATION: Between Paul Smith Way and West 18th Street, west of Stinson Avenue

APPLICANT: City of Cheyenne

OWNER: City of Cheyenne

ZONING: MUB Mixed-use Business Emphasis

FUTURE LAND USE: Mixed-use Residential

PURPOSE: To zone land for a future gymnastics facility

PREPARED BY: Seth Lloyd, Senior Planner



RECOMMENDED MOTION:

Move to **approve** the zoning of Lot 1, Block 1, Back 40 Subdivision, 3rd Filing, Laramie County, Wyoming to P Public District as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- Missile Drive Corridor Plan (2010)
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from MUB Mixed-use Business Emphasis P Public for roughly 4.84 acres of land. This zone change is for the development of a public facility. Some of the land directly to the south is currently going through a relatively unrelated zone change from CB to MUB (although both projects are partnering on and utilizing new street and drainage infrastructure, the properties subject to the zone change requests are being done by two different parties for two different purposes).

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Residential	MUB Mixed-use Business	Vacant
North	Mixed-use Residential	LI Light Industrial MUB	Industrial, Vacant
South	Mixed-use Residential, Mixed-use Commercial	MUB, CB Community Business (proposed to be MUB)	Vacant
East	Mixed-use Commercial	CB	Entertainment, Indoor Recreation Facility
West	Mixed-use Residential	MUB	Vacant

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure.

The Future Land Use Designation for this property and most surrounding properties is Mixed Use Residential. Surrounding the area is also the Mixed Use Commercial designation. These designations encourage a mix of residential and commercial uses with associated zone districts. According to comprehensive plan the optimal City zone for the subject property's future land use designation is Mixed-use Residential, but a variety of commercial or residential zones may be applicable to meet the intended development pattern. While the future land use map of PlanCheyenne would suggest a commercial or residential zoning for the property, public uses such as parks, schools, and recreation facilities can be appropriate in nearly any zoning district, serving residents and businesses either nearby or regionally. It is hard to predict where public uses will be needed or where such public-use development is feasible. Although there is a 'public' designation on the future land use map, it is largely only used for existing public (or quasi-public) facilities.

PlanCheyenne encourages the measured growth of public facilities to keep up with the needs and demands of a growing community. Public investment is encouraged along the west Lincolnway corridor to encourage private investment. The creation of public facilities is one form of public investment that can assist in this objective. Quality of life amenities (including recreation-center-like facilities) are encouraged to be competitive with front range facilities.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

Nearby properties are zoned LI, CB and MUB. Due to the nature of the P zone, it is frequently found in areas all by itself for public facilities that are surrounded by private developments. Generally speaking, the P zone is appropriate anywhere in the community where a public land use is present, as such, the P zone is largely compatible with all zone districts and comprehensive plan designations.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The existing zone district allows for a variety of residential and commercial uses. The P district allows for a variety of public uses. While the requested P zone has significantly fewer allowed uses, the property is owned by the City, and public uses are anticipated for the property.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

Although the underlying comprehensive plan designations would suggest a smaller block size, due to the varied public uses Article 4 has a specific exemption for civic uses in regards to block size. The property has multiple possible access points and could also share access with

neighboring properties. The Master Transportation Plan's collector and arterial street network would still apply, but the property is already close to major streets and no new major streets would be expected to go through this parcel.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The AG zone is intended to develop with a variety of agricultural uses, in areas far from City services or as a holding zone until future development occurs. The zone does not have any zone-specific design standards.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The specific development proposed with this zone change is a gymnastics facility. The P zone is more permissive in design standards and parking requirements than the current MUB zone. Should the current proposed use not be executed, it is probable another civic use would be installed at the site. Should a non-governmental agency take control of the parcel, a zone change away from P will be required.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

**CONFORMANCE WITH APPLICABLE PLANS:**

The project is located in an area covered by the following plans:

- PlanCheyenne
- Missile Drive Corridor Plan (2010)

Conformance with PlanCheyenne is covered by review criterion 1.

The Missile Drive Corridor Plan (2010) examine the potential redevelopment of the area. It suggested revamping the street network for better connectivity and expansion of an 'entertainment district' focused on the Ice and Events Center. The Back 40 Subdivision 3rd Filing Plat helped establish street network connectivity within the current constraints. The proposed gymnastics facility is considered an entertainment venue and would expand the entertainment district at this location in conformance with this plans' recommendations.

STAFF REVIEW:

Through the review process, no review comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The P zone is appropriate based on the current ownership and the desire to use the property as a public facility.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

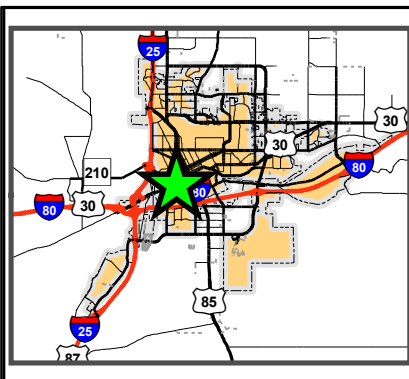
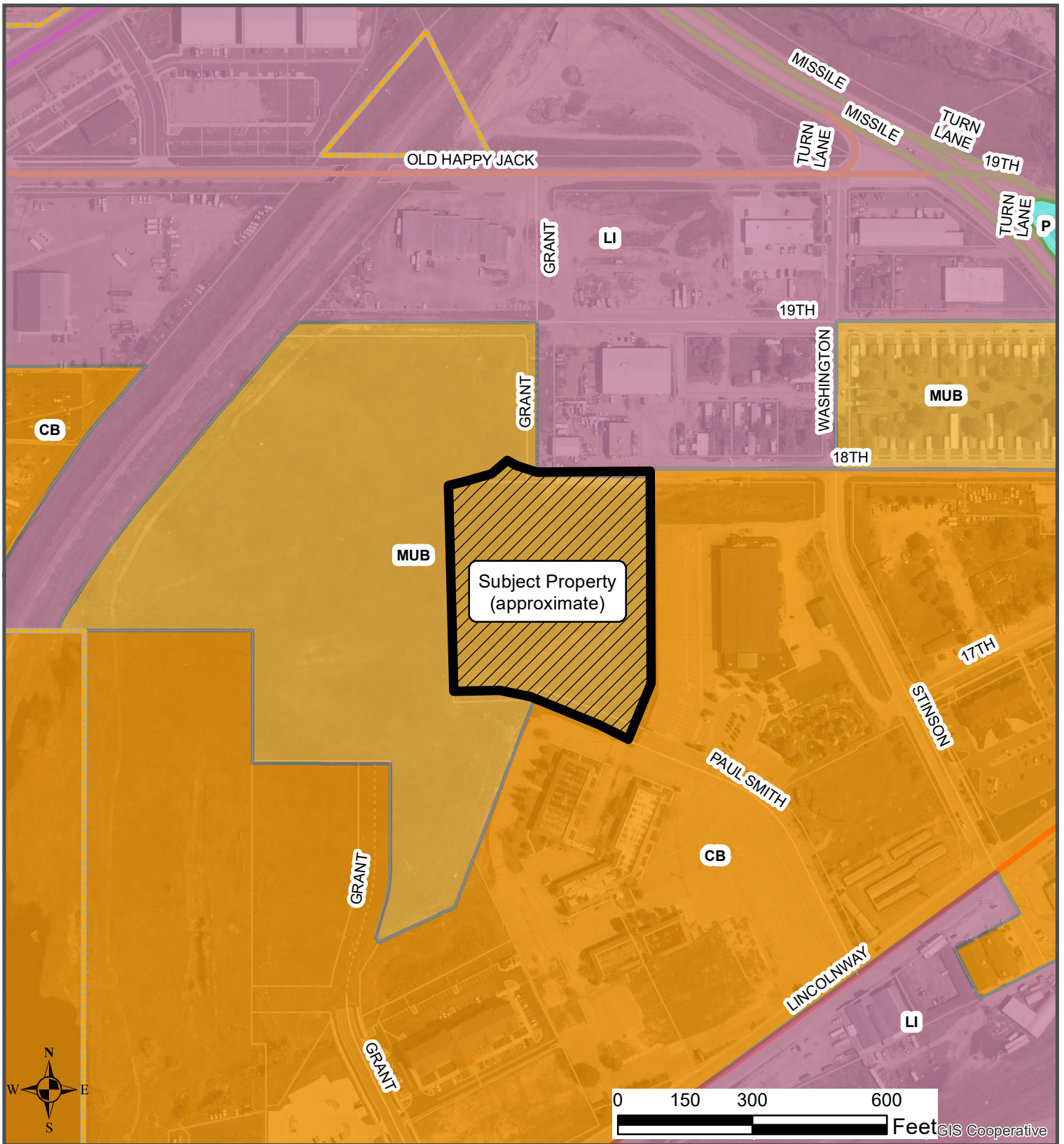
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the zoning of the property P Public District.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map
5. Recorded Back 40 Subdivision, 3rd Filing plat map (for property reference)



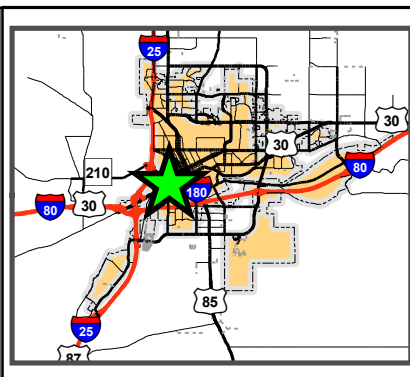
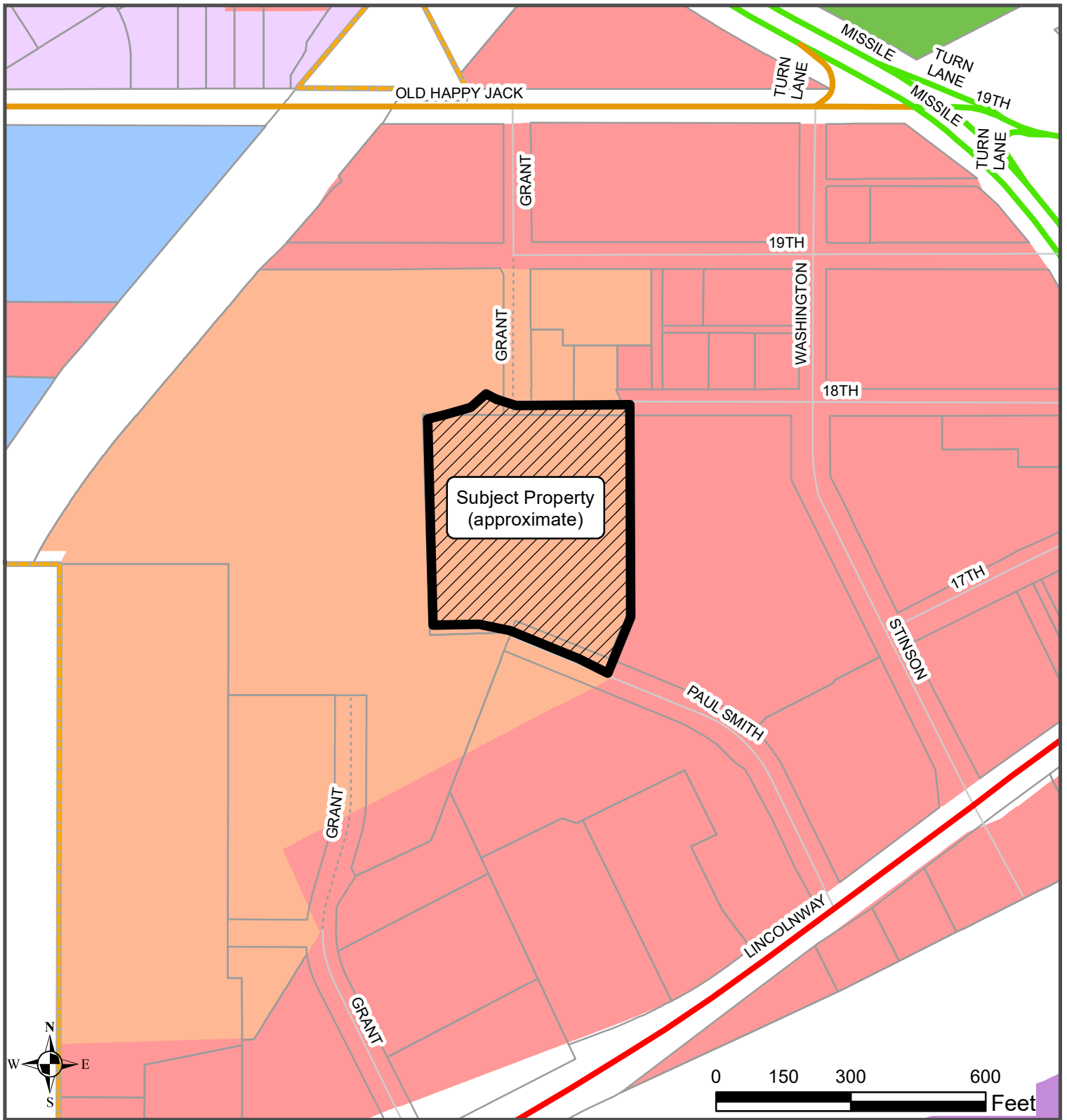
Attachment 1: Zoning Map PUDC-23-98

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt

Feet GIS Cooperative



Attachment 2: Land Use Map PUDC-23-98

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Cheyenne, WY

08/28/2023

PUDC-23-98

Zoning Map Amendment

Status: Active

Date Created: Jul 18, 2023

Applicant

Jeanie Vetter
jvetter@cheyennecity.org
2101 O'Neil Avenue
Room 202
Cheyenne, WY 82001
3036384379

Primary Location

O W LINCOLNWAY
Cheyenne, WY 82001

Owner:

Jeanie Vetter
2101 O'Neil Ave Rm 202 Cheyenne, Wyoming
82001-3512

Application

Project Name

Gymnastics Facility Zone Change

Proposed Zoning

P Public

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.

Jean Ann Vetter

07/18/2023

Staff use

Attachments

pdf

Letter of Authorization.pdf

Uploaded by Jeanie Vetter on Jul 18, 2023 at 8:36 am

pdf

Gymnastics Zone Change Map.pdf

Uploaded by Jeanie Vetter on Jul 18, 2023 at 8:36 am

pdf

Zone Change Letter - Back 40 Gymnastics.pdf

Uploaded by Jeanie Vetter on Jul 18, 2023 at 8:36 am

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Zone Change Letter - Back 40 Gymnastics.pdf

Uploaded by Jeanie Vetter on Jul 18, 2023 at 8:37 am

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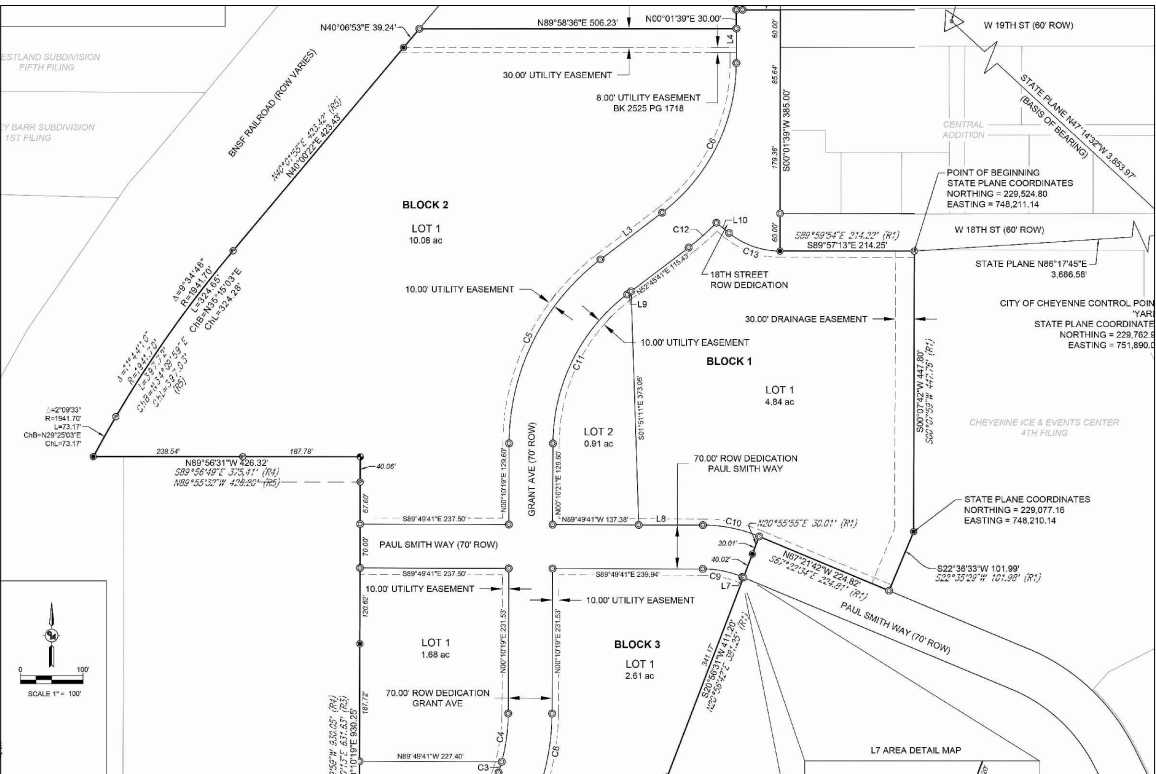
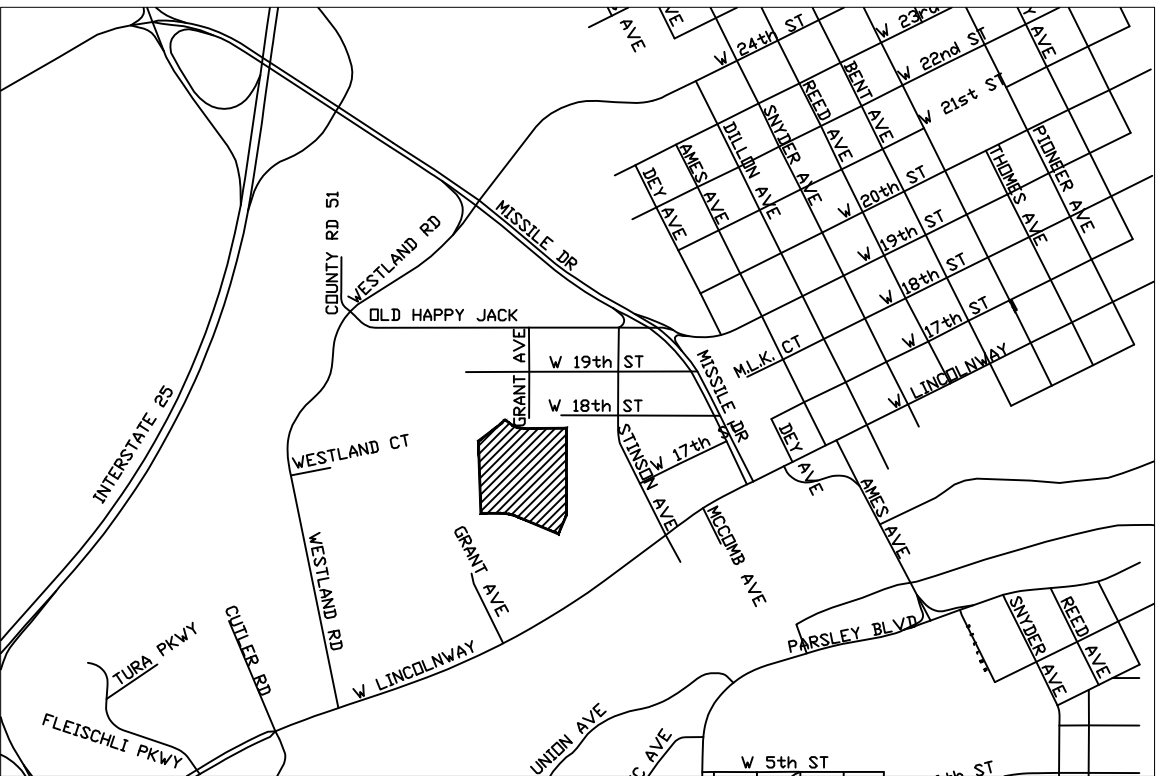
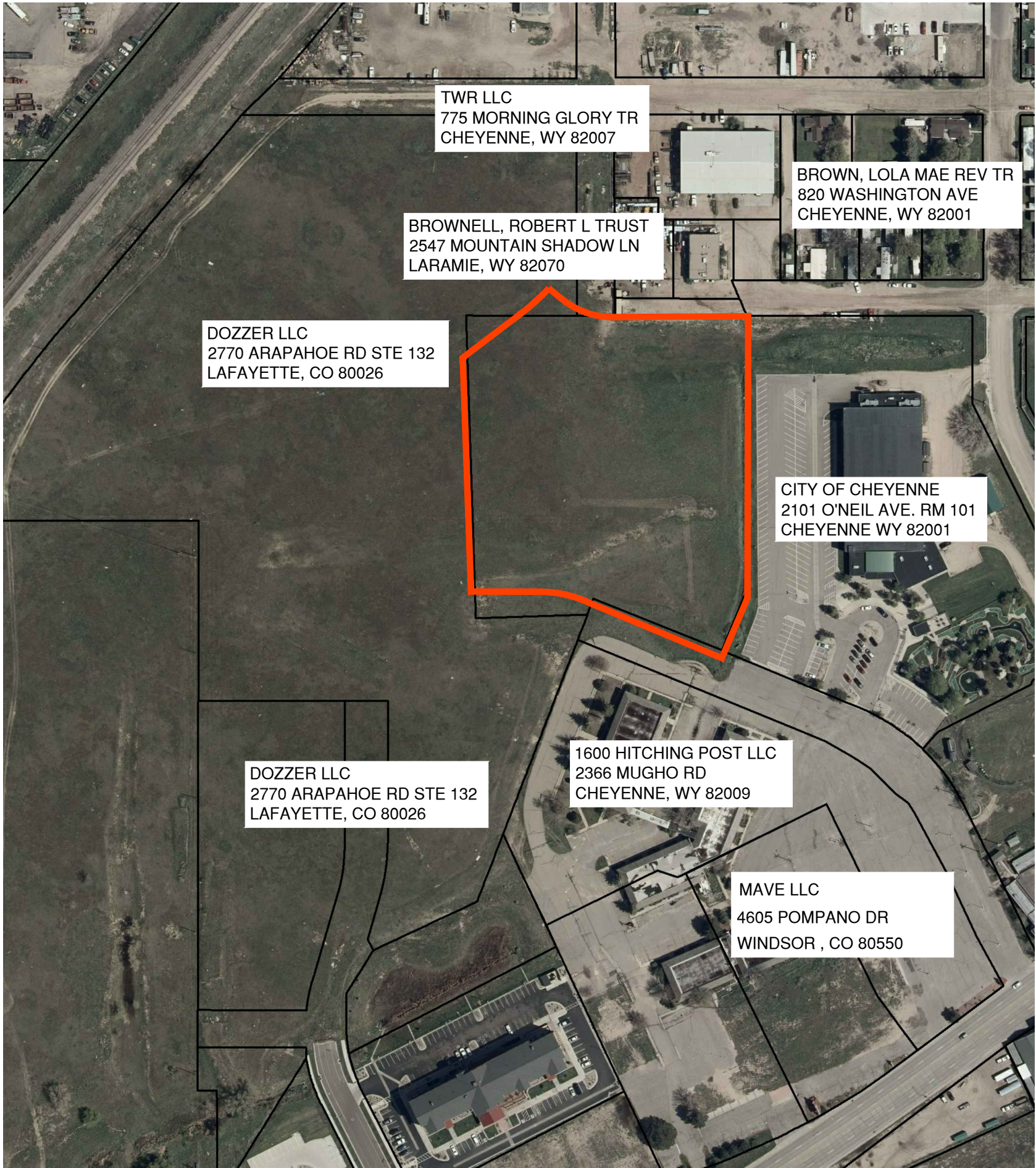
Posted Notice.pdf

Uploaded by Seth Lloyd on Aug 23, 2023 at 1:40 pm

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MailedNotice.pdf

Uploaded by Seth Lloyd on Aug 23, 2023 at 9:07 am



SITE INFORMATION - LOT 1, BLOCK 1, BACK 40 SUBDIVISION, THIRD FILING

CURRENT ZONING - MUB-MIXED USE BUSINESS DISTRICT
REQUESTED ZONING - P-PUBLIC DISTRICT

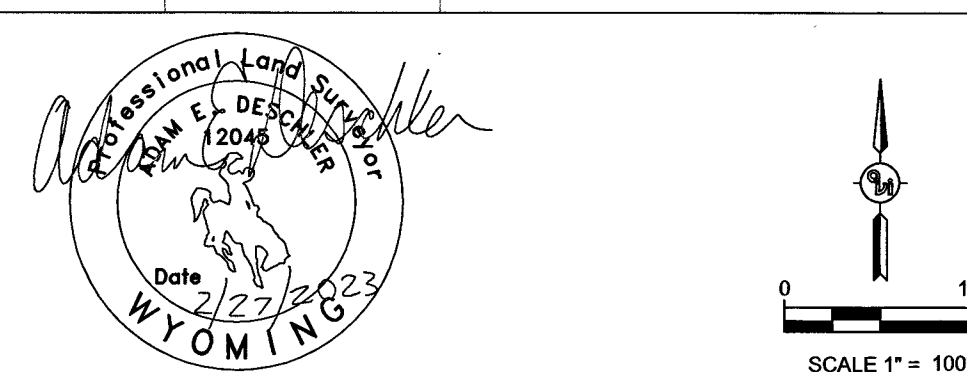
DRAWN BY: JV
DATE: 07-15-2023

JOB TITLE: CITY OF CHEYENNE GYMNASIUMS FACILITY
DRAWING NAME: ZONING MAP AMENDMENT

CITY OF CHEYENNE



LINE TABLE		
LINE #	BEARING	DISTANCE
L1	N00°17'11"E	100.00
L2	N18°28'00"E	104.32
L3	N52°45'41"E	123.54
L4	N00°01'39"E	55.00
L5	N00°17'11"E	46.56
L6	N18°28'00"E	104.32
L7	S67°21'42"E	2.07
L8	N89°49'41"W	102.56
L9	N52°45'41"E	8.11
L10	S51°05'29"E	25.94



PROJECT:		PREPARED FOR:	
BACK 40 SUBDIVISION THIRD FILING		DOZZER, LLC 2770 ARAPAHOE ROAD, STE 123 LAFAYETTE, CO, 80026	
DRAWING TITLE:			
FINAL PLAT			
			
307.637.6017 1103 OLD TOWN LANE, SUITE 101 CHEYENNE, WY 82009 AVI@AVIPC.COM			
DATE:		Feb 27, 2023	
DRAWN BY:		ACB	
DESIGNED BY:		BE	
CHECKED BY:		AED	
JOB NO.:		4585	
DRAWING NO.		1 OF 1	